

24STCV01820 24STCV01820

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-08-06

Motion: PLAINTIFF STELLA-NATALY CATRAL'S MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

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Case Number: 24STCV01820 Hearing Date: August 6, 2026 Dept: 731

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

STELLA-NATALY CATRAL

Plaintiff(s),

vs.

GENERAL MOTORS, LLC, a Limited
Liability Company; and DOES 1 through 100, inclusive,

Defendant(s).

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CASE NO: 24STCV01820

[TENTATIVE] ORDER RE: PLAINTIFF

STELLA-NATALY CATRAL'S MOTION FOR ATTORNEYS' FEES, COSTS, AND EXPENSES

Dept. 731

August 6, 2026

8:30 A.M.

Matter No. 10

Moving Party: Plaintiff, Stella-Nataly Catral

Opposing Party: Defendant, General Motors, LLC

Notice: OK

Background Facts

Plaintiff Stella-Nataly Catral

brought this action suing Defendants General Motors, LLC and Does 1 through 100

pursuant to a January 24, 2024, Complaint alleging statutory claims arising

from the Song-Beverly Warranty Consumer Act ("SBA").

The action settled around October 15, 2025, with Plaintiff filing a notice of conditional settlement on October 16, 2025, that provided an estimated dismissal date of February 13, 2026.

Now before the Court is Plaintiff's opposed motion for attorneys' fees in the amount of \$83,819.50 and for costs and expenses in the amount of \$3,677.14 as the prevailing party in an SBA action.

Motion for Attorneys'
Fees and Costs and Expenses

Timeliness

The Court briefly addresses the opposition argument advanced by General Motors that the present motion is untimely because it was filed beyond 180 days from October 15, 2025, i.e., the date Plaintiff signed the 998 offer leading to a settlement between the parties. (Opposition, pp. 8-9.)

Simply, the deadline in California Rules of Court, rule 3.1702 had not run as of the time the present motion was filed on May 15, 2026.

Rule 3.1702(b)(1) requires a motion for attorneys' fees to be served and filed within the time for filing a notice of appeal under rules 8.104 (time to appeal in unlimited civil case) and 8.108 (extensions on time to appeal). Rule 8.104 provides the earliest deadline of: 60 days after service of notice of entry of judgment (by clerk or party), OR 180 days after entry of judgment if no notice is served. California courts have held that the triggering event under rule 3.1702 may be a dismissal, with the critical distinction being whether the dismissal concluded the litigation and triggered the right to fees. (See, e.g., *Hatlevig v. General Motors LLC* (Feb. 17, 2026) 118 Cal.App.5th 644, 649 (Hatlevig) ["A voluntary dismissal, though not appealable, starts the clock running on the time to move for attorney fees when the dismissal concludes the litigation and triggers a right to fees."].)

Here, the litigation can be said to have concluded before this Court on December 15, 2025, on which date the Court

ordered the Complaint dismissed without prejudice, with the Court retaining jurisdiction pursuant to Code of Civil Procedure section 664.6. (Dec. 15, 2025, Minute Order, p. 1.) The record fails to reflect that the clerk or any party served notice of the Court's December 15th minute order. Consequently, the deadline to file Plaintiff's motion was 180 days from the dismissal date of December 15, 2025, i.e., Saturday, June 13, 2026, pushed to Monday, June 15, 2026, by operation of law (Code Civ. Proc., §§ 10, 12, 12a), well before the present motion was filed on May 15, 2026.

The Court does not credit the opposition arguments that the deadline for rule 3.1702 runs from signing of a section 998 agreement. Simply, such a signature does not connote the kind of conclusion to litigation contemplated in *Hatlevig*, i.e., a dismissal, or comparably, a judgment.

Attorneys' Fees

i. Legal Standard

A prevailing party is entitled to recover costs as a matter of right. (Code Civ. Proc., § 1032, subds. (a)(4), (b).) Attorney's fees are also recoverable as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) Separately, a prevailing buyer in a Song-Beverly Act action is entitled to recover their attorney's fees and costs under the Act's express terms. (Civ. Code, § 1794, subd. (d); see *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 464, 471.)

The Court begins this inquiry "with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 (*PLCM Group*)). From there, the "lodestar figure may then be adjusted [according to a multiplier enhancement] based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (*Ibid.*) Relevant multiplier factors include "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (*Ketchum v. Moses* (2001) 24 Cal.4th

1122, 1132.)

ii. Discussion

As a prevailing buyer in an SBA action, Plaintiff seeks an award of \$83,819.50, consisting of (1) \$55,203.00 in attorneys' fees (\$9,415.00 for Hovanes Margarian, \$28,848.00 for Shushanik Margarian, and \$16,940.00 for Patrick Kimbal); (2) a 1.5 Lodestar multiplier of \$27,601.50; and (3) assistant fees equal to \$1,015.00. (Motion, Notice, ¶ 1; see also Motion, H. Margarian Decl., Ex. A.)

Plaintiff also seeks costs of \$3,677.14 (Motion, Notice, ¶ 2), as reflected in Plaintiff's May 15, 2026, memorandum of costs.

1. Reasonable

Fee Rates

Here, Plaintiff seeks rates (1) between \$650.00 per hour and \$750.00 per hour for Hovanes Margarian, Esq., (2) between \$550 per hour and \$670 per hour for Shushanik Margarian, Esq., (3) of \$700.00 per hour for Patrick Kimbal, Esq., and (4) \$150.00 per hour for Elmira Oganyan. (See Motion, H. Margarian Decl., Ex. A.)

General Motors' opposition papers do not dispute these rates, instead focusing on challenging the reasonability of expended hours. (See Opposition, pp. 9-16.)

After review, given that the Court will be disposing of this motion within its discussion of reasonability of hours spent on this action, the Court makes no determination as to reasonability of the requested fee rates, undisputed by General Motors.

2. Reasonable

Hours

When a voluminous fee application is made, the court may make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure. (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 40, citing Warren v. Kia

Motors America, Inc. (2018) 30 Cal.App.5th 24, 41.) A trial court is not required to state each charge it finds reasonable or unreasonable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case. (Karton v. Ari Design & Construction, Inc. (2021) 61 Cal.App.5th 734, 744.) But the court must clearly explain its reasons for choosing the particular negative multiplier that it chose; otherwise, the reviewing court is unable to determine that the court had valid, specific reasons for its across-the-board percentage reduction. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41.)

Here, the Court agrees with General Motors' position that this action was overlitigated. (See Opposition pp. 9-16.) In particular, the first and fourth categories of billing entries—post-filing attorney hours (51.4 hours for total of \$30,530.00) and hours spent on the present motion (18.20 hours for total of \$12,838.00) (see Motion, H. Margarian Decl., Ex. A, pp. 15-27, 31-32)—are excessive when juxtaposing the time spent on the stated tasks, some of which are too generalized or vaguely described as to support the time spent on the task and the fee rate attached thereto.

Accordingly, the Court makes a 33% reduction to the total requested fees of \$56,218.00 (\$55,203.00 in counsel fees, \$1,015.00 in legal staff fees), resulting in a fee award of \$37,666.06.

3. Multiplier

The Court finds insufficient grounds for a multiplier here. While the Court can accept that Plaintiff's counsel works on contingency (Motion, pp. 16-19), the questions involved are customary in SBA actions and the skills displayed here are likewise of customary quality.

4. Fees

Conclusion

In conclusion, fees are awardable here in the amount of \$37,666.06.

Costs and Expenses

The Court does not address an award

of costs and expenses at this hearing, which will be addressed on August 11, 2026, at a hearing for Defendant General Motors LLC's motion to strike or tax costs from Plaintiff's May 15, 2026, memorandum of costs (Res. ID No. 902229781323), which, as stated above, seeks \$3,677.14 in costs and expenses related to this action.

Conclusion

Plaintiff Stella-Nataly Catral's motion for attorneys' fees and costs and expenses is:

(1) GRANTED, in part, as to attorneys' fees, in the amount of \$37,666.06; and

(2) CONTINUED to August 11, 2026, at 8:30 AM, as to costs and expenses, to be addressed alongside Defendant General Motors LLC's motion to strike or tax costs (Res. ID No. 902229781323).

Defendant General Motors LLC is ORDERED to remit payment of \$37,666.06, representing the award of fees, to Plaintiff's counsel within 30 days of notice of this Order.

Plaintiff Stella-Nataly Catral is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: August 6, 2026 _____

MARK C. KIM

Judge of the

Superior Court